



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 30, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103942 regarding Police Officer Daniel Davidoff, Tax No. 961722 (DADS No. 2022-27317) and Lieutenant Thomas Redmond, Tax No. 948411 (DADS No. 2022-27318)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that neither the actions of Lieutenant Redmond nor Officer Davidoff warrant disciplinary action.

Lieutenant Redmond and Officer Davidoff were attempting to apprehend an individual who resisted arrest and attempted to escape from the officers. The situation involving the individual who was resisting arrest was clearly dangerous and posed a risk to the officers' safety. When the individual's mother intervened, attempting to stop the officers from arresting her son, the situation became even more dangerous to all parties. After many failed efforts to gain her compliance through verbal commands, Lieutenant Redmond told the individual's mother to back up or she could be tasered. This warning was given in an effort to finally gain the mother's compliance and de-escalate the situation. It is significant that CCRB acknowledged, in their investigative recommendation, that the individual's mother's actions "constituted an interference with the arrest of [her son]," and that she had "refused to move after being told to do so several times."

Lieutenant Redmond also warned the individual who had resisted arrest and tried to escape that he would be tasered, when he was actively resisting being placed into the officers' car. This warning was utilized to gain the individual's compliance, while Lieutenant Redmond was trying to manage the situation prior to the arrival of requested back-up officers. It should be noted that

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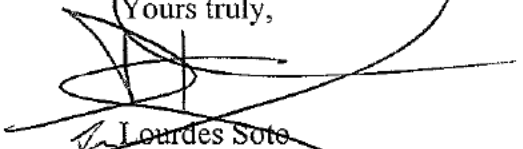
the Lieutenant's words successfully gained the individual's compliance, as intended, and Lieutenant Redmond never actually utilized his taser on either the individual or his mother.

Finally, upon arriving at the stationhouse and placing the arrested individual into the cell area, Officer Davidoff's body-worn camera shows that he was clearly attempting to console the distraught arrestee, when he stated "just take your laces off so I can put you in there, talk to the squad, and get you the fuck out of here." At the time the statement was made, Officer Davidoff was being overtly sympathetic and patient with the arrestee, even patting him on the back to calm him, and the arrestee responded by apologizing to Officer Davidoff and shaking his hand. Officer Davidoff's use of profanity in this situation was not discourteous, as the recording of the situation clearly shows.

Therefore, Police Officer Davidoff will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department) and Lieutenant Redmond will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Threat of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office